

*Maolong Wuzhong Down Products, Ltd. v. Keehn & Associates, APC* (2015) 238 Cal.App.4th 1031, 1039.) Plaintiff further alleges in the Complaint that his discovery of the facts underlying his claims did not occur until December 2024, still within the one-year timeframe. (*Id.*, ¶ 8.) On demurrer, the court assumes the truth of the facts alleged in the Complaint. While Defendants dispute the truth of these allegations, they have been alleged in the Complaint and their truth is not at issue on demurrer. Plaintiff at this stage need only plead ultimate fact and not evidentiary facts. "At this stage, [...] without any development of the facts, we cannot conclude that section 340.6(a) necessarily bars [Plaintiff's] claim." *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.) The court intends to overrule the demurrer.

### **Motion to Strike**

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) A motion to strike may be used to remove a claim for punitive damages that is not adequately supported by the facts alleged in the complaint. (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145; *Kaiser Foundation Health Plan, Inc. v. Superior Court* (2012) 203 Cal.App.4th 696.)

Defendants move to strike from the Complaint the prayers for exemplary, general, treble, punitive, and emotional distress damages, as well as the request for prejudgment interest. These types of damages are either statutorily authorized (i.e. treble damages) or must be supported by specific factual allegations of malice, oppression, fraud, or more than financial harm (e.g. a liberty interest at stake). Such specifics are not presently alleged in the Complaint, and the court intends to grant the motion to strike the requested items, with leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

### **Tentative Ruling**

Issued By: JS on 8/11/2026.  
(Judge's initials) (Date)

(36)

**Tentative Ruling**

Re: ***Boys & Girls Clubs of Fresno County v. The Optimist Boys Club of Fresno, Inc., et al.***  
Superior Court Case No. 25CECG02004

Hearing Date: August 13, 2026 (Dept. 503)

Motion: Application for Default Judgment

**Tentative Ruling:**

To deny without prejudice. (Code Civ. Proc., § 761.020.)

**Explanation:**

Statutory Elements of Quiet Title Not Well Pled

The complaint shall be verified and shall include all of the following:

(a) A description of the property that is the subject of the action. In the case of tangible personal property, the description shall include its usual location. **In the case of real property, the description shall include both its legal description and its street address or common designation, if any.**

(b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title. If the title is based upon adverse possession, the complaint shall allege the specific facts constituting the adverse possession.

(c) The adverse claims to the title of the plaintiff against which a determination is sought.

(d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.

(e) A prayer for the determination of the title of the plaintiff against the adverse claims.

(Code Civ. Proc., § 761.020, emphasis added.)

Although a legal description is included in the verified complaint, it does not appear that plaintiff has pled the common designation of the property. Moreover, in the court's view, in the case of real property, a common designation is likely to be more

